

This Marketplace Partner Program Agreement (including any appendices attached hereto, this “**Agreement**”), effective as of the Effective Date (as defined below), is between the party identified as Marketplace Partner below (“**Marketplace Partner**”) and PointClickCare Technologies Inc. (“**PointClickCare**”).

1. **Defined Terms.**

Capitalized terms used but not defined herein will have the meanings ascribed to them in the Marketplace Partner Terms and Conditions (as defined below). In addition, as used in this Agreement, the following capitalized terms will have the following meanings:

“**Activated Customer**” means a Customer (i) that has agreed to the Marketplace Partner API Integration TOS; (ii) has issued a valid Letter of Authorization; and (iii) for whom the Interface has been enabled pursuant to Section 2.2 below.

“**Active Facility**” means an Activated Customer facility that is subject to a Letter of Authorization issued by such Activated Customer.

“**App Validation**” means PointClickCare’s process to evaluate and certify the Marketplace Partner API Integration, as more particularly described in the App Validation Guidelines.

“**App Validation Guidelines**” means the PointClickCare App Validation Guidelines which are available on the Website, and which are incorporated by reference into this Agreement and are subject to change from time to time.

“**API**” means a set of technical routines, protocols, and tools provided by PointClickCare to the Marketplace Partner in order to access data and interact with the Associated PointClickCare Software and Interface, solely for the approved Use Case and operation of the Marketplace Partner API Integration.

“**Associated PointClickCare Software**” means PointClickCare electronic health record and related cloud-based services made available to facilities operating in the long-term and post-acute care and acute healthcare sectors.

“**Brand Trademarks**” means the trade names, trademarks, service marks, logos, domain names, and other distinctive brand features of PointClickCare.

“**Confidential Information**” has the meaning given to it in Section 11.1.

“**Customer**” means any person or entity who subscribes for any Associated PointClickCare Software.

“**Marketplace Partner API Integration**” means the software application or integration developed by Marketplace Partner under the Marketplace Partner Terms and Conditions and identified on Appendix A.

“**Marketplace Partner API Integration TOS**” means an agreement between Marketplace Partner and each Customer that purchases access to the Marketplace Partner API Integration, and which governs such Activated Customer’s use of the Marketplace Partner API Integration.

“**Marketplace Partner Content**” means the documentation and promotional content relating to the Marketplace Partner API Integration submitted by Marketplace Partner to PointClickCare.

“**Marketplace Partner Trademarks**” means the trade names, trademarks, service marks and logos of Marketplace Partner and the Marketplace Partner API Integration.

“**Marketplace Partner Terms and Conditions**” means the Terms of Use of Marketplace Partner Portal located on the Website, which govern Marketplace Partner’s creation of the Marketplace Partner API Integration.

“**Materials**” means all written, visual, and electronic documents and resources related to the API’s, Interface and Associated PointClickCare Software made available by PointClickCare and provided to Marketplace Partner.

“**HIPAA**” means the Health Insurance Portability and Accountability Act (1996) and any amendments or implementing regulations.

“**Interface**” means an electronic interface and associated technology (including APIs) to permit data exchange between Associated PointClickCare Software and the Marketplace Partner API Integration to enable efficient use of the Marketplace Partner API Integration by Activated Customers.

“**Letter of Authorization**” means a letter from a Customer authorizing Marketplace Partner and PointClickCare to access the electronic health records of such Customer’s Active Facilities and to transmit certain records among the parties.

“**Personal Information**” means any information pertaining to a directly or indirectly identifiable individual.

“**PIPEDA**” means the *Personal Information Protection and Electronic Documents Act (2000) (Canada)* and any amendments or implementing regulations.

“**PHI**” means protected health information in the United States, as such term is defined in HIPAA. PHI means personal health information in the majority of Canadian provinces, as such term is defined in any applicable laws and regulations (the other provinces’ applicable laws and regulations use alternative terms such as “health information” or “personal information” in lieu of “personal health information” and, in this Agreement, PHI also shall refer to any applicable alternative term).

“**PointClickCare IP**” means the PointClickCare Marketplace, the Associated PointClickCare Software (including any incorporated proprietary data), APIs and the Brand Trademarks.

“**PointClickCare Marketplace**” means any marketplace, website, or app directory or gallery established by PointClickCare, to display and market PointClickCare’s products and services and/or any products or services developed by Marketplace Partners pursuant to the Marketplace Partner Terms and Conditions.

“**Use Case**” means the categorization of Marketplace Partner API Integration authorized by PointClickCare, including permitted and prohibited functionality and applicable PointClickCare APIs, as more particularly described in Appendix A of this Agreement (subject to change from time to time with written notice to Marketplace Partner).

“**Website**” means PointClickCare’s Marketplace Partner Program website located at <https://developer.pointclickcare.com/spa/> for developer information and <https://marketplace.pointclickcare.com/s/> for PointClickCare Marketplace listings, as applicable.

2. Marketplace Partner API Integration Commercialization

- 2.1 **Interface.** PointClickCare will use commercially reasonable efforts to develop and make available the Interface, which will function substantially in accordance with the Materials. PointClickCare may update the Interface from time to time in its sole discretion, including but not limited to, the APIs made available under a Use Case and any security or privacy measures.
- 2.2 **App Validation.** Marketplace Partner will comply with the App Validation Guidelines with respect to App Validation of the Marketplace Partner API Integration. If Marketplace Partner materially alters or updates the Marketplace Partner API Integration, PointClickCare may in its sole discretion require Marketplace Partner to undergo App Validation again and, in such case, reserves the right to negotiate amendments to the terms of this Agreement or require Marketplace Partner to enter into a new agreement. Upon successful completion of App Validation and receipt of a Letter of Authorization from a Customer, PointClickCare will enable the Interface in respect of the Marketplace Partner API Integration for such Customer.
- 2.3 **Integration Resource.** The Marketplace Partner may engage a third-party integration resource or technology (collectively referred to as an “**Integration Resource**”) to assist the Marketplace Partner with the completion of any development work required to complete its integration with the Associated PointClickCare Software, using the APIs provided by PointClickCare, provided that: (i) the Marketplace Partner and its Integration Resource are only using the specific APIs, for the specific Use Case, that the Marketplace Partner has been approved for in Appendix A of this Agreement as the basis of its integration with the Associated PointClickCare Software; ii) the Marketplace Partner shall be solely responsible to ensure the Integration Resource has the technical capabilities, skills and experience necessary to provide the integration services; (iii) the Integration Resource is not providing services from countries subject to sanctions and/or trade embargoes, including, but not limited to, pursuant to the Office of Foreign Assets Control of the U.S. Department of the Treasury or Canadian sanctions imposed under the Special Economic Measures Act (SEMA) or the Justice for Victims of Corrupt Foreign Officials Act (JVCFOA) or subject to export compliance restrictions described in Section 2.3; and (iv) the Marketplace Partner complies with all terms and conditions of this Agreement. Notwithstanding the foregoing and for the avoidance of doubt, to the extent that an act or omission was caused or contributed to by any failure by any such Integration Resource or any other person appointed by the Marketplace Partner, the Marketplace Partner shall be responsible for all liability and assumes all risk associated with the use of the Integration Resource. PointClickCare shall not be liable, responsible or accountable in damages or otherwise to the Integration Resource or any of the other persons for any act or omission performed or omitted on behalf of the Marketplace Partner.
- 2.4 **Export Compliance.** Marketplace Partner may be subject to restrictions and controls including, if applicable, (i) export laws and regulations of Canada, including, but not limited to Canadian Export Administration Regulations, administered by the Department of Commerce, Bureau of Industry and Security (“**Canadian Export Controls**”); and/or (ii) enacted under the United States export controls regulations administered by the United States Department of Commerce (15 C.F.R., Chapter VII) (“**U.S. Export Controls**”). Marketplace Partner shall comply with all applicable laws and regulations. Marketplace Partner shall not export or re-export the APIs or Interface, or any portion thereof, directly or indirectly, in violation of applicable laws, including, if applicable, Canadian Export Controls or U.S Export Controls, export administration laws and regulations, to any country or end user, or to any party that Marketplace Partner knows, or has reason to know, will utilize them in the design, development, or production of nuclear, chemical or biological weapons. Marketplace Partner further

acknowledges that APIs and the Interface may include technical data subject to U.S. Export Controls.

- 2.5 **Coordination.** PointClickCare and Marketplace Partner will use commercially reasonable efforts to cooperate with respect to technical, marketing, and support functions in connection with the Interface. Marketplace Partner will provide training and support (including demonstrations) to PointClickCare staff to enable PointClickCare staff to promote the Marketplace Partner API Integration to Customers, as reasonably requested by PointClickCare. Each of PointClickCare and Marketplace Partner will promptly advise the other of complaints or claims from Customers that come to its attention regarding the other's services or solutions and will timely address such issues.
- 2.6 **Semi-Annual Request for Information.** On a semi-annual basis, every January and July, Marketplace Partner shall furnish PointClickCare with comprehensive growth forecast reports. The reports shall provide clear metrics, and timelines, to demonstrate the anticipated growth and strategic initiatives undertaken by the Marketplace Partner for the expansion of use of the Marketplace Partner program and the increased adoption of the Marketplace Partner API Integration by Customers.
- 2.7 **Maintenance of Interface.** Each of PointClickCare and Marketplace Partner will use commercially reasonable efforts to build and maintain developments, or, to the extent applicable and within its authority, cause its third-party vendors to use commercially reasonable efforts to build and maintain its software and systems designed to function with the Interface. If PointClickCare or Marketplace Partner, or a respective third-party vendor, releases a new version of such software or systems, such party will use commercially reasonable efforts to prevent those new versions from interfering with the functionality of the Interface or, to the extent within its authority, cause its third-party vendor to do so. If PointClickCare receives notice that the Interface is unavailable or not working properly, then PointClickCare will use commercially reasonable efforts to restore the availability and operation of the Interface. Each of PointClickCare and Marketplace Partner will use commercially reasonable efforts to resolve any issues that arise with respect to the interoperation of the Interface and the Marketplace Partner API Integration in an expeditious and prioritized manner.

3. Marketplace Partner Obligations

- 3.1 **Responsibility for Marketplace Partner API Integration.** Marketplace Partner is solely responsible, and PointClickCare has no responsibility or liability of any kind, for the content, development, installation, operation, hosting, sale, support or maintenance of the Marketplace Partner API Integration, including, but not limited to, the interoperation of the Marketplace Partner API Integration with the Interface or any other third party's technology. Marketplace Partner and the Marketplace Partner API Integration are and will remain in compliance with the Marketplace Partner Terms and Conditions.
- 3.2 **Marketplace Partner API Integration TOS.** Marketplace Partner will (a) provide a Marketplace Partner API Integration TOS with terms and conditions consistent with software/technology industry standards to each Activated Customer, and (b) ensure that each Activated Customer affirmatively agrees to such Marketplace Partner API Integration TOS prior to accessing the Marketplace Partner API Integration. The Marketplace Partner API Integration TOS will contain at least the following provisions:
 - (a) the Marketplace Partner API Integration TOS are between Marketplace Partner and Customer, and not PointClickCare and Customer;
 - (b) PointClickCare is not responsible for providing the Marketplace Partner API Integration, content contained within the Marketplace Partner API Integration, any related support or maintenance, or any changes the Marketplace Partner API Integration makes to the Customer's database; and
 - (c) Marketplace Partner, not PointClickCare, is solely responsible for complying with Customer's audit requests, including with respect to logging, reporting of statistics, and third-party security assessments.
- 3.3 **Support.** Marketplace Partner will prominently display in the Marketplace Partner API Integration support line contact information (including, but not limited to, email address and phone number) for Activated Customers to contact Marketplace Partner and respond to such inquiries in a timely manner. All customer support for the Marketplace Partner API Integration will be solely provided by Marketplace Partner. Marketplace Partner will provide PointClickCare with at least five (5) business days' notice of any planned Marketplace Partner API Integration downtime. Marketplace Partner agrees PointClickCare may display the status and uptime metrics of the Marketplace Partner API Integration to Active Facilities.
- 3.4 **Security and Privacy Laws.** Neither PointClickCare nor Marketplace Partner is a business associate of the other party. Marketplace Partner will comply with all applicable local, state, provincial and federal laws related to information security and privacy standards, specifically, if Marketplace Partner is located in the United States, HIPAA, or, if Marketplace Partner is located in Canada, the laws and regulations of the applicable jurisdiction(s) regarding the protection and security of PHI,

and PIPEDA regarding the protection and security of other Personal Information. Marketplace Partner is solely responsible for complying with relevant privacy legislation that applies to it and acknowledges it may have its own legal obligations which are separate and distinct from this Agreement to secure and protect PHI and other Personal Information created, received, maintained, or transmitted to Marketplace Partner by or through the Marketplace Partner API Integration. If the operation of the Marketplace Partner API Integration involves the use or disclosure of any PHI via the Interface, Marketplace Partner will enter into a valid business associate (or equivalent) agreement with each Activated Customer as required by applicable laws, rules and regulations.

3.5 Information Security Obligations. Marketplace Partner hereby agrees to the following information security obligations:

3.5.1 Information Security Program. Marketplace Partner will implement and maintain a written information security program, in compliance with all federal, provincial and local laws and regulations applicable to Marketplace Partner and consistent with generally accepted industry standards for entities working within the healthcare information technology industry, that contains reasonable and appropriate security measures designed to safeguard the Personal Information and/or PHI of each Activated Customer and PointClickCare's Confidential Information that Marketplace Partner receives, stores, maintains, processes, transmits or otherwise accesses in connection with the provision of Marketplace Partner API Integration(s) contemplated hereunder. In this regard, Marketplace Partner will establish and maintain policies, procedures, and technical, physical, and administrative safeguards, designed to:

- a. ensure the security and confidentiality of all Personal Information, PHI and any other Confidential Information that Marketplace Partner receives, stores, maintains, processes or otherwise accesses in connection with the provision of Marketplace Partner API Integration hereunder;
- b. protect against any reasonably foreseeable threats or hazards to the security or integrity of Personal Information, PHI or other Confidential Information;
- c. protect against unauthorized access to or use of Personal Information, PHI or other Confidential Information;
- d. maintain reasonable procedures to detect and respond to any internal or external security incidents and breaches; and
- e. ensure appropriate disposal of Personal Information, PHI or other Confidential Information. Marketplace Partner will monitor and review its information security program and revise it, as necessary, to ensure it appropriately addresses any applicable legal and regulatory requirements. Marketplace Partner shall periodically test and review its information security program.

3.5.2 Information Security Questions. Marketplace Partner shall respond to PointClickCare's reasonable requests for information concerning Marketplace Partner's information security program and, upon request, Marketplace Partner will provide a copy of its applicable policies and procedures. Upon reasonable request, Marketplace Partner shall discuss with PointClickCare the information security program of Marketplace Partner. Marketplace Partner also agrees, upon reasonable request, to complete any security questionnaire provided by PointClickCare and to return it in a commercially reasonable period of time (or provide an alternative response that reasonably addresses the points included in the questionnaire).

3.6 Data Transmissions. In connection with any transfer of Personal Information or PHI between the Marketplace Partner API Integration and the Interface, Marketplace Partner will: (i) transfer such Personal Information or PHI only through use of a dedicated connection to which it is the only authorized party or such other method of communication, such as encrypted communication, which offers an equivalent level of security and authentication of the recipient; (ii) not permit any third party to use any such connection to the extent that such use is within Marketplace Partner's control; and (iii) take adequate and reasonable steps to ensure that access to that Personal Information and PHI at each Marketplace Partner location is limited to its authorized personnel only. Marketplace Partner will take reasonable care to ensure that data transmissions between the Marketplace Partner API Integration and the Interface that contain any Personal Information or PHI are timely, complete, and accurate, and will take reasonable steps to retransmit any such data transmission to the Interface upon discovery that the original transmission was lost in transmission or corrupted. If Marketplace Partner receives data from the Interface and is informed or believes that such data was not intended for it, Marketplace Partner will notify PointClickCare and promptly take effective steps to return such data, or at the direction of PointClickCare, immediately and permanently delete such data from its systems.

3.6 Data Breach Notification. Marketplace Partner shall: (i) promptly and in no case later than forty-eight (48) hours after discovery notify PointClickCare of any confirmed unauthorized access to Personal Information, PHI and any other Confidential Information that Marketplace Partner receives, stores, maintains, processes or otherwise accesses in connection with this Agreement or to Marketplace Partner platform ("**Breach of Security**"); (ii) promptly furnish to PointClickCare appropriate details of such Breach of Security and assist PointClickCare in assessing the Breach of Security;

(iii) reasonably cooperate with PointClickCare in any litigation and investigation of third parties reasonably deemed necessary by PointClickCare to protect PointClickCare's proprietary and other rights, including any of its downstream obligations to Active Facilities; (iv) use reasonable precautions to prevent a recurrence of a Breach of Security; and (v) take all reasonable and appropriate action to mitigate any potential harm related to a Breach of Security, including any reasonable steps requested by PointClickCare for Marketplace Partner to implement.

- 3.7 Data Write-Back. If data write-back capabilities are made available by PointClickCare, Marketplace Partner will ensure that any data received from the Associated PointClickCare Software and changed within the Marketplace Partner API Integration will be written back into the Associated PointClickCare Software using such methods as PointClickCare may specify in its sole discretion.
- 3.8 Database Migrations. In the event of a transfer of ownership or assets of an Activated Customer that results in a change in Active Facilities, upon receipt of appropriate authorization, Marketplace Partner will use commercially reasonable efforts to support such change.
- 3.9 Privacy Policy. Marketplace Partner will establish and publicly post a privacy policy that meets applicable legal standards and accurately describes the collection, use, storage and sharing of Personal Information and PHI by Marketplace Partner. Marketplace Partner will promptly notify PointClickCare and Active Facilities in writing of any breaches of the Marketplace Partner API Integration TOS or privacy policy that may impact Active Facilities.
- 3.10 Prohibitions. Marketplace Partner will ensure that it does not: (a) access or use the APIs or Interface except in accordance with the applicable Use Case set forth in Appendix A; (b) include content in the Marketplace Partner API Integration that is in PointClickCare's judgment, harassing, defamatory, abusive, lewd, obscene or is otherwise objectionable; (c) perform an action that introduces to Associated PointClickCare Software any viruses, worms, defects, Trojan horses, malware, or any items of a destructive nature; (d) store any plain text PointClickCare authorization credentials; (e) send spam emails; (f) access or support the Interface from outside of Canada or the United States of America; (g) interfere with, or disrupt the integrity or performance of, the Interface; (h) attempt to gain access to any other entity's services, or systems, networks, or related data that Marketplace Partner does not have a legal right to access; (i) copy, duplicate, reproduce, frame, or mirror any part of the Interface; (j) de-construct or reverse engineer the Interface or PointClickCare IP; or (k) access the Interface or PointClickCare IP or allow any employee, contractor or agent to access (directly or indirectly) the Interface or Associated PointClickCare Software, with, for example, any automated or other process such as robotic process automation, screen scraping, by using robots, web-crawlers, spiders or any other sort of bot or tool, for the purpose of extracting data, monitoring availability, performance, functionality, or for any other benchmarking or competitive purpose; or (l) access the Interface or Associated PointClickCare Software in such a way that adversely impacts the performance of the Interface or Associated PointClickCare Software. Notwithstanding anything to the contrary, in addition to the remedies available to PointClickCare in accordance with applicable law or elsewhere provided in this Agreement, failure by the Marketplace Partner to comply with any of the terms and conditions set forth in this Section 3.10, shall be deemed a material breach. Marketplace Partner acknowledges and accepts that if Marketplace Partner is in breach of this Section 3.10, Marketplace Partner will be required to pay PointClickCare liquidated damages of \$15,000 USD, due immediately upon issuance of written notice to Marketplace Partner and PointClickCare may terminate the Agreement in its sole and absolute discretion.
- 3.11 Non-Interference. During the Term and for twelve (12) months thereafter, Marketplace Partner will not, solely or jointly with others, induce or attempt to induce any Customer to cease doing business with PointClickCare or in any way interfere with the relationship between PointClickCare and any Customer.
- 3.12 Use of Webpages and URLs.
 - 3.12.1 The Marketplace Partner's use of webpages and URLs directly or indirectly connected to the Marketplace Partner API Integration offered to Customers is subject to the following restrictions:
 - a. Webpages and URLs must comply with all applicable laws and regulations, including but not limited to, intellectual property rights, industry standard security requirements, privacy laws, and anti-spam laws.
 - b. PointClickCare is not responsible for the content or accuracy of external webpages and URLs.
 - c. PointClickCare reserves the right to remove any external webpage or URL at any time without prior notice.
 - d. Without limiting the generality of the foregoing and without limiting Marketplace Partner's liability or responsibilities under this Agreement, Marketplace Partner will take appropriate measures to secure and defend webpages and URLs against virus, unauthorized activity, hackers, and others who may seek, without authorization, to modify or access Marketplace Partner's webpages, URLs, systems or the information found therein.

- e. Marketplace Partner agrees to maintain appropriate administrative, physical, and technical safeguards for the protection of the security, confidentiality and integrity of the webpages and URLs.
 - f. Marketplace Partner agrees to periodically test its webpages, URLs, and systems for potential areas where security could be breached.
 - g. In the event of a security incident involving Marketplace Partner's use of webpages, URLs, or network used to store, process, or transmit information related to the Marketplace Partner API Integration, PHI, or Confidential Information, Marketplace Partner will notify PointClickCare within forty-eight (48) hours and communicate the circumstances of the incident and all remedial steps taken to resolve the incident. Marketplace Partner will further communicate to PointClickCare any steps that it plans to take in order to prevent similar incidents in the future. The Marketplace Partner shall cooperate with PointClickCare to furnish audit logs, security reports, attestation letters, or other pertinent documentation that provide PointClickCare confidence of Marketplace Partner's proper handling and resolution of security incidents.
- 3.12.2 PointClickCare makes no representation or warranty regarding the accuracy, reliability, or suitability of any information or content contained in external webpages and URLs. Notwithstanding anything to the contrary and for the avoidance of doubt, to the extent which an act or omission was caused or contributed to by any failure by any such use of webpages and URLs by the Marketplace Partner, the Marketplace Partner shall be responsible for all liability and assumes all risk associated with the use of the webpages and URLs. PointClickCare shall not be liable, responsible or accountable in damages or otherwise related to the webpages and URLs or for any of the other persons for any act or omission performed or omitted on behalf of the Marketplace Partner's use of webpages and URLs. The use of external webpages and URLs is at the Marketplace Partner's own risk.

4. Trademark Licenses

4.1 By PointClickCare to Marketplace Partner.

- 4.1.1 Marketing and Interface. Subject to the terms and conditions set forth in this Agreement and upon completion of App Validation, PointClickCare grants to Marketplace Partner during the Term a limited, non-exclusive, non-sublicensable, non-transferable, revocable right to display the Marketplace Partner API Integration directly to Customers through the PointClickCare Marketplace and use the Interface solely to enable interoperability between the Marketplace Partner API Integration and Associated PointClickCare Software.
- 4.1.2 Branding and Marketing Guidelines. Subject to the terms and conditions set forth in this Agreement, PointClickCare grants to Marketplace Partner a limited, non-exclusive, non-sublicensable, non-transferable, revocable right and license to use the Brand Trademarks for the sole purpose of promoting the Marketplace Partner API Integration in accordance with the PointClickCare Brand Guidelines located in PointClickCare's Marketplace Partner Program website (the "**Brand Guidelines**"), which are hereby incorporated by reference and are subject to change from time to time. This license may be revoked by PointClickCare at any time. Notwithstanding any provision to the contrary, PointClickCare reserves the right to review all content, quotes, and press releases related to or referencing PointClickCare and its Brand Trademarks prior to the Marketplace Partner's publication of any such content.

4.2 By Marketplace Partner to PointClickCare.

- 4.2.1 Marketing. Marketplace Partner grants to PointClickCare a limited, non-exclusive, revocable, worldwide, fully paid-up, royalty-free right and license to:
 - (a) use, distribute, create excerpts from, advertise, transmit, and publicly display Marketplace Partner Trademarks and Marketplace Partner Content in all digital and other formats in connection with displaying or directing the Marketplace Partner API Integration to Customers, including in the PointClickCare Marketplace Website; and
 - (b) use the Marketplace Partner Trademarks to refer to Marketplace Partner as a participant in the PointClickCare Marketplace Partner Program, including on the Website for PointClickCare's Marketplace listings, in press releases, and in other marketing materials.
- 4.2.2 Feedback. Marketplace Partner agrees to provide ongoing feedback, comments, ideas and suggestions related to the PointClickCare Marketplace Partner Program and the PointClickCare IP ("**Feedback**") as PointClickCare may reasonably request from time to time. Marketplace Partner grants to PointClickCare a worldwide, fully paid-up, royalty-free, transferable, sub-licensable (through multiple tiers), irrevocable,

perpetual right and license to copy, distribute, publicly display, modify, use and otherwise fully commercially exploit the Feedback and the subject matter thereof, without compensating or crediting Marketplace Partner.

5 Fees and Payment Terms

- 5.1 Fees. Marketplace Partner will pay PointClickCare the fees set forth in Appendix B for each Active Facility in accordance with the terms of this Agreement. After the Initial Term (as defined in Section 6.1), PointClickCare may increase fees by up to the consumer price index (CPI) + 3% no more frequently than once annually upon sixty (60) days' notice to Marketplace Partner. Such fees are PointClickCare's Confidential Information and may not be disclosed to any third party, including any Customer or Active Facilities of the Marketplace Partner API Integration. Marketplace Partner will completely and accurately report to PointClickCare such details as it may reasonably request regarding each Activated Customer of the Marketplace Partner API Integration and any associated fees.
- 5.2 Notwithstanding the obligations set forth in Section 5.1, Marketplace Partner shall annually meet or exceed the Minimum Integration Commitment requirements as defined and set forth in Appendix B. In addition, if the Marketplace Partner is unable to meet the Annual Requirement (as defined in this Section 5.2), the Marketplace Partner shall be required to make payment to PointClickCare for the total difference (Minimum Integration Requirement minus the number of Active Facilities) payable to PointClickCare. Payment shall be due to PointClickCare within thirty (30) days after the commencement of each Renewal Term (as defined in Section 6.1 herein). For the avoidance of doubt, such payment shall be the greater of: 1) the Minimum Integration Commitment (the difference between Active Facilities and the Minimum Integration Commitment); or 2) the total number of Active Facilities integrated by the Marketplace Partner, if greater than the Minimum Integration Commitment. Failure to meet such Minimum Integration Commitment requirements in any calendar year (the "**Annual Requirement**") shall constitute a material breach of this Agreement and PointClickCare may terminate this Agreement at PointClickCare's sole discretion.
- 5.3 Fees collected from the sale of the Marketplace Partner API Integration ("**Purchase Fees**") will be processed directly between the Activated Customer and Marketplace Partner. Marketplace Partner agrees that PointClickCare will not be responsible for, and will not issue any refunds to, Marketplace Partner or any Activated Customer with respect to the Marketplace Partner API Integration for any reason, including Marketplace Partner's failure to support the Marketplace Partner API Integration. For avoidance of doubt, PointClickCare will not be liable for any damages that result from the Marketplace Partner API Integration for any reason or Marketplace Partner's breach of the Marketplace Partner API Integration TOS.
- 5.4 PointClickCare will issue to Marketplace Partner a monthly invoice, in arrears, and Marketplace Partner will pay the fees within thirty (30) days of the invoice date. Failure to remit payment within agreed timeframes may result in the deactivation of Active Facilities and/or Activated Customers and/or the removal from the PointClickCare Marketplace Partner Program at PointClickCare's sole discretion. PointClickCare may notify any Activated Customer of its intention to amend, suspend, or terminate access to the Marketplace Partner API Integrations.
- 5.5 If an Activated Customer wishes to be deactivated or Marketplace Partner initiates a deactivation request, the party requesting deactivation must provide written notification to PointClickCare. Such written notification shall include (but not be limited to) details related to the reason(s) for the deactivation and supporting documentation. PointClickCare will use commercially reasonable efforts to deactivate any such Activated Customer in a timely manner and within ten (10) business days of receipt of notice. Marketplace Partner will be responsible for the re-occurring monthly fees until the date PointClickCare deactivates the previously Activated Customer, after which billing will cease. Notwithstanding the foregoing, it may be necessary for PointClickCare to notify the Activated Customer prior to completing the deactivation initiated by the Marketplace Partner. Accordingly, Marketplace Partner understands and acknowledges that the details contained in the written notice from the Marketplace Partner may be shared with an Activated Customer.
- 5.6 For any conflict between PointClickCare's and Marketplace Partner's records related to the Active Facilities, PointClickCare will review records from all parties for a resolution in good faith. Notwithstanding the foregoing, PointClickCare's records will prevail and will be deemed accurate. Marketplace Partner will continue to pay all invoices in accordance with the payment terms during the records review period. If PointClickCare's review of records reveals errors or discrepancies in a party's records, the parties will promptly correct the error or discrepancy, including refunding any over-payments or making up any underpayments to PointClickCare.

6 Term and Termination

- 6.1 Term. The initial term of this Agreement will commence on the date PointClickCare countersigns it (the "**Effective Date**") and will continue for a period of **fourteen (14) months** ("**Initial Term**") unless terminated earlier pursuant to this Agreement. This Agreement will automatically renew for successive **one (1) year** terms thereafter (each a "**Renewal Term**"), and

together with the Initial Term, the “**Term**”) until and unless either party provides the other party with written notice of non-renewal at least sixty (60) days’ prior to the end of the then current term or otherwise terminates this Agreement pursuant to terms set forth herein.

6.2 Termination for Convenience. Either PointClickCare or Marketplace Partner may terminate this Agreement upon ninety (90) days’ written notice to the other, except as such right may be qualified by any other written agreement between Marketplace Partner and PointClickCare. Notwithstanding anything to the contrary, Marketplace Partner will be required to continue to pay any applicable fees (including the Minimum Integration Commitment fees) to PointClickCare until the effective date of the termination.

6.3 Termination for Cause. PointClickCare may terminate this Agreement and/or suspend the Marketplace Partner API Integration at any time upon notice if Marketplace Partner breaches this Agreement or if PointClickCare determines, in its sole discretion, that the Marketplace Partner API Integration may negatively affect PointClickCare, the Interface, or PointClickCare customers. Notwithstanding the foregoing, to the extent reasonably practicable, PointClickCare may provide Marketplace Partner fifteen (15) business days from the date on which PointClickCare has provided Marketplace Partner with notice specifying any actual or alleged breach of this Agreement to cure any such breach (the “**Cure Period**”). Termination and/or suspension, and the associated payment obligations will take effect immediately after the Cure Period unless Marketplace Partner cures the identified problem on or before the final day of the Cure Period.

6.4 Effect of Termination. Upon termination of this Agreement:

- (a) the Marketplace Partner API Integration will be disabled and removed from the PointClickCare Marketplace;
- (b) if any Activated Customers desire to continue to use the Marketplace Partner API Integration, Marketplace Partner will continue to provide and support the Marketplace Partner API Integration in accordance with this Agreement and the Marketplace Partner API Integration TOS for a period of six (6) months from the effective date of termination, and Marketplace Partner will continue to pay any applicable fees (including the Minimum Integration Commitment fees) to PointClickCare;
- (c) all rights and obligations of the parties hereto will automatically terminate except for those set forth in this Section 6.4 and Section 19.6, and PointClickCare will not have any liability for the cessation of Marketplace Partner’s access to the Interface or PointClickCare Marketplace;
- (d) Marketplace Partner will permanently delete all data and any other information that Marketplace Partner stored in the Marketplace Partner API Integration, except when doing so would cause Marketplace Partner to violate any law, regulation or obligation imposed by a governmental authority or by a contract with an Activated Customer;
- (e) PointClickCare will make commercially reasonable efforts to remove all references and links to the Marketplace Partner API Integration from the PointClickCare Marketplace and Associated PointClickCare Software; and
- (f) Marketplace Partner will cooperate with PointClickCare to design and provide termination assistance services to PointClickCare for a period not to exceed three (3) months following termination of the Agreement, on terms that are fair and commercially reasonable and generally commensurate and consistent with leading industry practices.

7 Intellectual Property Rights

The Agreement does not transfer from PointClickCare to Marketplace Partner the ownership of any PointClickCare IP or any PointClickCare Confidential Information. All ownership of the PointClickCare IP and PointClickCare Confidential Information will remain solely with PointClickCare. No rights or licenses are granted by PointClickCare other than those rights expressly granted in this Agreement, and PointClickCare expressly reserves all rights not expressly granted. Similarly, the Agreement does not transfer from Marketplace Partner to PointClickCare any ownership of Marketplace Partner Intellectual Property Rights or Marketplace Partner Confidential Information, and all ownership of Marketplace Partner Intellectual Property Rights and Marketplace Partner Confidential Information will remain solely with Marketplace Partner.

8. Data Ownership and Use

8.1 Data Ownership. As between the parties hereto: (i) data stored in Associated PointClickCare Software and any reports or data derived by processing such data, will be owned by PointClickCare; (ii) data stored in Marketplace Partner’s systems (excluding any data provided by PointClickCare to which Marketplace Partner would not otherwise have any ownership rights) will be owned by Marketplace Partner; and (iii) data received from a third party that is provided by

that third party pursuant to a written agreement between it and either or both of the parties hereto will be owned as provided under that written agreement and/or under applicable law. To the extent that data is stored in both PointClickCare's and Marketplace Partner's systems, Associated PointClickCare Software will be the system of record which stores the definitive master copy. For the avoidance of doubt, neither PointClickCare or Marketplace Partner will have ownership rights to PHI; ownership rights to any PHI furnished under this Agreement vests solely and exclusively with the covered entity or the individual to whom such PHI relates.

8.2 Data Use. Each of PointClickCare and Marketplace Partner may use data that it does not own but that it receives under this Agreement solely: (i) as necessary to perform its obligations under this Agreement; (ii) as expressly permitted under this Agreement and for the Use Cases described in Appendix A; (iii) as permitted under each applicable agreement between that party and any third party that owns such data; and (iv) for that party's internal administrative purposes related to treatment, payment, and healthcare operations (as defined in, and allowed by, HIPAA and other applicable law).

8.3 Data Use Authorizations. Marketplace Partner acknowledges and agrees that it shall be solely responsible for ensuring that it has obtained all necessary authorizations and consents required under applicable laws and regulations for any data or PHI it has received, maintained, or transmitted on behalf of an Activated Customer prior to permitting the use of the Marketplace Partner API Integration. Marketplace Partner further agrees to provide evidence of such authorizations and consents upon reasonable request by PointClickCare.

9. Non-Exclusivity

PointClickCare may currently or in the future develop, or partner with persons which develop, applications and services that may be similar to or competitive with the Marketplace Partner API Integration. Nothing in this Agreement will in any way limit, restrict or preclude PointClickCare from pursuing any of these, or any other, present or future business activities, opportunities or interests or from entering into any agreement or transaction with any person.

10. Marketplace Partner Personal Information and Usage Data

10.1 Marketplace Partner Personal Information. PointClickCare may reveal information about Marketplace Partner for attribution purposes, handling inquiries from Activated Customers or potential customers, and other purposes PointClickCare reasonably deems necessary for operations related to the PointClickCare Marketplace.

10.2 PointClickCare Marketplace Usage Data. PointClickCare may collect, use, process and store diagnostic and usage-related content from computers, mobile phones, and other devices with respect to the use of and access to the PointClickCare Marketplace, Website, or any materials licensed hereunder in order to: (a) maintain and improve the performance and integrity of same, (b) understand which portions of same are most commonly used and preferred by users and how users interact with same, (c) identify the types of services that may require additional maintenance or support, and (d) comply with all regulatory, legislative and/or contractual requirements.

11. Confidentiality Obligations

11.1 *Confidential Information*. "**Confidential Information**" shall mean non-public information disclosed to the recipient whether in writing, orally, electronically, by or on behalf of the disclosing party whether furnished before or after the date of this Agreement, which the disclosing party designates as being confidential information, or which under the circumstances of disclosure, ought to be treated as confidential. Confidential Information shall include, but is not limited to any and all of the following types of information which the recipient will have access to: this Agreement (including Use Case and fee information contained in Appendix A and B), all Technical Information, non-technical data, know-how, inventions, research or experimental work, design details and specifications, formulae, patterns, compilations, programs, devices, methods, techniques, processes, equipment and apparatus, drawings, financial data or information, price lists and pricing and sales policies, customer lists and customer information including prospective clients, investors, business and supplier relationships, business forecasts, sales and merchandising information, training and other manuals, procurement requirements, and data, marketing plans, business opportunities and the existence or status of negotiations in connection with this Agreement and any other information in any form which is not public and which gives the disclosing party an advantage over its competitors who do not know or use it. "**Technical Information**" includes PointClickCare User Interface, product information and product plans, technical designs and specifications, software, algorithms, know-how, techniques, reports, methods, strategies, plans, documents, drawings, designs, tools, models, inventions and patent disclosures. Confidential and Technical Information may be disclosed in written, oral, electronic, website-based or other form and whether or not specifically identified as confidential at the time of disclosure. Where the Confidential Information combines information within the public domain or information already in the possession of the recipient, but the combination is not in the public domain, the combination shall constitute Confidential Information. Confidential Information expressly excludes information which: (a) is or becomes generally known or available through no act or failure

to act on the part of the recipient; (b) is known by the recipient without any obligation to keep such information confidential at the time of receiving such information as evidenced by its written records; (c) is furnished to the recipient by a third party as a matter of right and without restriction on disclosure; (d) is independently developed by the recipient without any breach of this Agreement, as evidenced by its written records; or (e) is disclosed in response to a valid order of a court or other governmental body (provided that the recipient shall first have given notice to the disclosing party hereto and shall have made a reasonable effort to obtain a protective order requiring that the Confidential Information so disclosed be used only for the purposes for which the order was issued) or is otherwise required by law.

11.2 Non-Disclosure. The recipient shall take measures to maintain the Confidential Information in trust and confidence at least as protective as the measures it takes to maintain the confidentiality of the recipient's own Confidential Information, and in no event less than reasonable measures, and shall not disclose to any third party nor use any Confidential Information except to the extent required to accomplish the obligations of this Agreement. Confidential Information shall not be used for any purpose or in any manner that would constitute a violation of any laws or regulations, including without limitation control laws. The recipient shall be entitled to disclose Confidential Information only to its employees, officers, directors, consultants and representatives who have a need to know such information in order to carry out the obligations of this Agreement. The recipient shall remain fully liable and responsible for the use of the Confidential information by such persons, including the obligation to ensure that each is bound by a legal agreement containing obligations of confidence at least as comprehensive as those set out in this Agreement. The recipient will advise its employees, consultants and representatives who may have access to Confidential Information of its confidential nature and of their duty to protect such Confidential Information from improper disclosure. Recipient will not copy any Confidential Information of the disclosing party, except as authorized in writing by the disclosing party, and shall protect any such authorized copies in accordance with this Agreement. No rights or licenses to trademarks, inventions, copyrights or patents are implied or granted under this Agreement. All Confidential Information (including copies) shall remain the property of the disclosing party.

11.3 Duration of Obligations. The obligations of confidence and non-disclosure governing Technical Information provided to a recipient shall remain in effect in perpetuity or until such Technical Information is no longer confidential or a trade secret of the discloser. For Confidential Information that does not include, contain or comprise Technical Information, the obligations of confidence and non-disclosure shall remain in effect for three (3) years from the date of termination of this Agreement.

11.4 Consequences of Breach. In the event of any breach of these confidentially obligations by the recipient, including the actual or threatened disclosure or unauthorized use of Confidential Information, the disclosing party may suffer an irreparable injury, such that no remedy at law will afford it adequate protection against, or appropriate compensation for, such injury. The recipient agrees that the disclosing party may be entitled to specific performance of the recipient's obligations, as well as such further relief as may be granted by a court of competent jurisdiction.

12. Disclaimers and Limitations of Liability

12.1 DISCLAIMERS. THE POINTCLICKCARE IP IS PROVIDED "AS IS" AND "AS AVAILABLE" AND WITHOUT ANY WARRANTY WHATSOEVER. TO THE MAXIMUM EXTENT PERMITTED BY LAW, POINTCLICKCARE DISCLAIMS ALL WARRANTIES, EXPRESS OR IMPLIED, INCLUDING ANY WARRANTY THAT THE SERVICES ARE FIT FOR A PARTICULAR PURPOSE AND ANY WARRANTIES RELATED TO TITLE, MERCHANTABILITY, DATA LOSS, NON-INTERFERENCE WITH OR NON-INFRINGEMENT OF ANY INTELLECTUAL PROPERTY RIGHTS, OR THE ACCURACY, RELIABILITY, QUALITY OR CONTENT IN OR LINKED TO THE POINTCLICKCARE IP. POINTCLICKCARE DOES NOT WARRANT THAT THE POINTCLICKCARE IP WILL BE UNINTERRUPTED, TIMELY, SECURE, ERROR-FREE OR VIRUS-FREE, NOR DOES POINTCLICKCARE MAKE ANY WARRANTY AS TO THE RESULTS THAT MAY BE OBTAINED FROM USE OF THE POINTCLICKCARE IP, AND NO INFORMATION, ADVICE OR SERVICES OBTAINED FROM POINTCLICKCARE OR THROUGH THE POINTCLICKCARE IP WILL CREATE ANY WARRANTY NOT EXPRESSLY STATED IN THIS AGREEMENT.

12.2 LIMITATION OF LIABILITY. UNDER NO CIRCUMSTANCES AND UNDER NO LEGAL THEORY (WHETHER IN CONTRACT, TORT, OR OTHERWISE) WILL POINTCLICKCARE BE LIABLE TO MARKETPLACE PARTNER OR ANY THIRD PARTY FOR (A) ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, CONSEQUENTIAL OR PUNITIVE DAMAGES, LOST PROFITS, LOST SALES OR BUSINESS, LOST DATA, OR (B) FOR ANY AMOUNT IN THE AGGREGATE IN EXCESS OF THE FEES ACTUALLY PAID BY MARKETPLACE PARTNER TO POINTCLICKCARE UNDER THIS AGREEMENT IN THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO MARKETPLACE PARTNER'S CLAIM OR, IF NO FEES APPLY, \$1,000, OR (C) ANY MATTER BEYOND POINTCLICKCARE'S REASONABLE CONTROL. THE PROVISIONS OF THIS SECTION ALLOCATE THE RISKS UNDER THIS AGREEMENT BETWEEN THE PARTIES, AND THE PARTIES HAVE RELIED ON THESE LIMITATIONS IN DETERMINING WHETHER TO ENTER INTO THIS AGREEMENT. SOME JURISDICTIONS DO NOT ALLOW THE EXCLUSION OF IMPLIED WARRANTIES OR LIMITATION OF LIABILITY FOR INCIDENTAL OR CONSEQUENTIAL DAMAGES, WHICH MEANS THAT SOME OF THE ABOVE LIMITATIONS MAY NOT APPLY TO YOU. IN THESE JURISDICTIONS, POINTCLICKCARE'S LIABILITY WILL BE LIMITED TO THE GREATEST EXTENT PERMITTED BY LAW.

13. Indemnification

13.1 Indemnification by Marketplace Partner. Marketplace Partner will indemnify, defend, and hold harmless PointClickCare and its affiliates, officers, agents, employees, and suppliers from and against any claims and all losses, costs, liabilities, damages, expenses, demands, suits, actions, proceedings, or judgments (including attorney's fees) (collectively, "**Claims**") made or brought against PointClickCare arising out of or in connection with: (a) any use by Marketplace Partner of the PointClickCare IP; (b) any breach by Marketplace Partner of the terms of this Agreement; (c) any damage caused by Marketplace Partner to any Associated PointClickCare Software, APIs, or technological framework support such environments; (d) an allegation that the Marketplace Partner API Integration infringes or misappropriates the Intellectual Property Rights of a third party; or (e) any Activated Customer's use of the Marketplace Partner API Integration.

13.2 Indemnification by PointClickCare. PointClickCare will defend Marketplace Partner against any Claims, made or brought against Marketplace Partner by a third party alleging that Marketplace Partner's use of the PointClickCare IP as permitted under this Agreement infringes or misappropriates the Intellectual Property Rights of a third party (a "**Claim Against Marketplace Partner**"). PointClickCare will indemnify Marketplace Partner against the resulting direct damages and attorneys' fees finally awarded against Marketplace Partner by a court of competent jurisdiction as a result of a court-approved settlement of a Claim Against Marketplace Partner, provided that Marketplace Partner follows the indemnification process outlined in Section 13.3. In the event of a Claim Against Marketplace Partner, or if PointClickCare reasonably believes the PointClickCare IP may infringe or misappropriate the rights of any third party, PointClickCare may in its discretion and at no cost to Marketplace Partner: (i) modify the PointClickCare IP so that they no longer infringe or misappropriate, without breaching PointClickCare's warranties; (ii) obtain a license for Marketplace Partner's continued use of the PointClickCare IP in accordance with this Agreement; or (iii) terminate this Agreement in accordance with its termination provisions.

13.3 Indemnification Process. In the event a party seeks indemnification hereunder (the "**Indemnified Party**"), it will inform the other party (the "**Indemnifying Party**") of a Claim as soon as reasonably practicable after it receives notice of the Claim, will permit the Indemnifying Party to assume direction and control of the defense of the Claim (including the right to settle the claim, contingent on its agreement that it will not settle any Claim unless that settlement includes a full and final release of all Claims against the Indemnified Party and does not impose any material obligations on the Indemnified Party). Any delay or failure by the Indemnified Party to give notice to the Indemnifying Party will not relieve the Indemnifying Party of its obligations hereunder except to the extent, if at all, that it is materially prejudiced because of such delay or failure.

14. PointClickCare Training Content

14.1 PointClickCare has developed and made available optional training and educational content, which will include up to 46 pre-identified courses offered by PointClickCare (the "**Training Content**") for Marketplace Partners. Training Content will be made available to Marketplace Partners electronically via PointClickCare's secure learning management system ("**LMS**") SmartZone platform, including up to five (5) hours of LMS admin support monthly (limited to two Training Content Users) for one (1) year.

14.2 Marketplace Partner may designate up to two (2) unique representatives (the "**Training Content Users**") to access the Training Content for an annual fee of \$1500.00 USD. Any additional requests for access beyond will require written approval from PointClickCare and will be subject to additional fees.

14.3 Training Content contains confidential and/or privileged information and is protected via copyright. The Training Content is provided "as is" without warranty of any kind, either expressed or implied, including, but not limited to, the implied warranties of merchantability, fitness for a particular purpose, or non-infringement. Duplication, redistribution, resale, transfer or modification, in whole or in part, of the Training Content or Training Context User accounts is strictly forbidden without prior written consent from PointClickCare.

15. Inspection and Audit of Books

15.1 Records; Reporting. During the Term and for a period of two (2) years thereafter, Marketplace Partner will maintain books and records with respect to its activities under this Agreement in a manner reasonably consistent with industry standards. The Marketplace Partner will provide PointClickCare commercially reasonable reports on a monthly basis on all Marketplace Partner API Integration sales.

15.2 Inspection and Audit. During the Term and for a period of two (2) years after the termination of this Agreement, on reasonable notice from PointClickCare, Marketplace Partner will provide PointClickCare and PointClickCare's representatives, reasonable access to its books and records related to this Agreement (and allow PointClickCare to make photocopies), during normal business hours. If PointClickCare finds an error or discrepancy in such books and records or in any monthly report provided to PointClickCare hereunder, Marketplace Partner will promptly correct the error or discrepancy, including refunding

any over-payments or making up any underpayments to PointClickCare. PointClickCare will bear all costs and expenses incurred in connection with any such audit; provided, however, that if any such audit correctly identifies any underpayments by Marketplace Partner in excess of 5% of the amount actually payable by Marketplace Partner to PointClickCare, then, in addition to paying the full amount of such underpayment, the Marketplace Partner will reimburse PointClickCare for all reasonable costs and expenses incurred by PointClickCare in connection with that audit.

16. Governing Law

16.1 Governing Law and Jurisdiction [For Marketplace Partners Located in the United States Only]. This Agreement will be governed by the laws of the State of Delaware and the federal laws of the United States of America without regard to its conflicts of laws provisions. To resolve any legal dispute arising from the terms of this Agreement, Marketplace Partner agrees to the exclusive jurisdiction of the State of Delaware.

16.1 Governing Law and Jurisdiction [For Marketplace Partners Located in Canada Only]. This Agreement will be governed by the laws of the Province of Ontario and the federal laws of Canada without regard to its conflicts of laws provisions. To resolve any legal dispute arising from the terms of this Agreement, Marketplace Partner agrees to the exclusive jurisdiction of the Province of Ontario.

17. Annual Acknowledgement of Agreement

To ensure compliance with the obligations set forth in this Agreement, Marketplace Partner will be required to annually acknowledge and reconfirm (electronically or in writing, as determined by PointClickCare) acceptance of the terms and conditions of this Agreement and report any changes in the Marketplace Partner API Integration, use of the Interface or a violation of any obligations set forth in this Agreement by January 31 of each year. Marketplace Partner agrees that failure to promptly and accurately provide annual acknowledgement may be grounds for termination of this Agreement at PointClickCare's sole discretion.

18. General Provisions

18.1 Entire Agreement, Waiver and Amendment. This Agreement supersedes and replaces any and all prior agreements (whether written or oral) between PointClickCare and Marketplace Partner with respect to a technical integration or connectivity between the parties' respective software systems or applications. This Agreement sets forth the entire agreement and understanding of the parties relating to the subject matter herein and supersedes all prior and contemporaneous communications, representations, discussions, and agreements between the parties with respect to such subject matter. If any provision of this Agreement is held to be unenforceable for any reason, such provision will be revised only to the extent necessary to make it enforceable. The failure of PointClickCare to act with respect to a breach of this Agreement by Marketplace Partner or others does not constitute a waiver and will not limit PointClickCare's rights with respect to such breach or any subsequent breaches. No purported amendment or waiver of any right, term or condition of this Agreement will be valid unless in writing and signed by each party's authorized representative. In addition, PointClickCare reserves the right to modify the Interface or the terms of this Agreement for any reason related to legal, regulatory, technical or operational necessities, upon no less than sixty (60) days' prior written notice to Marketplace Partner, provided that Customer may terminate this Agreement without liability or obligation in accordance with Section 6. Marketplace Partner's continued access to, or use of, the Interface after such notice period constitutes acceptance of such changes.

18.2 Independent Contractors. The parties are independent contractors, and nothing contained in this Agreement or in the relationship between PointClickCare and Marketplace Partner will be deemed to constitute a partnership, joint venture, or any other similar relationship among them. Neither party shall have the authority to make any statements, representations or commitments of any kind, or to take any action, which shall be binding on the other party, without the prior consent of such other party (provided by an authorized representative with authority to act on behalf of such party).

18.3 Assignment. Marketplace Partner may not assign any of its rights or obligations hereunder, whether by operation of law or otherwise, without the prior written consent of PointClickCare. PointClickCare may freely assign this Agreement and its rights and obligations hereunder.

18.4 Notices. Except as otherwise stated in this Agreement, all notices and communications required or permitted under the Agreement will be in writing and sent by registered or certified mail, postage prepaid, return receipt requested, facsimile transmission, with confirmed answer back, or electronic mail, with confirmation of receipt, to PointClickCare or Marketplace Partner at the respective addresses the parties provide to each other or such other addresses as the parties may from time to time specify by notice given as provided in this paragraph. In the case of PointClickCare, the address is 5570 Explorer Drive, Mississauga, Ontario, L4C 04W Attention: Legal Department and email is Legal@pointclickcare.com.

18.5 Construction. Each party acknowledges that it has read and reviewed the Agreement in its entirety, and has agreed to all

of its terms. The parties agree that the Agreement will not be construed in favor of or against either party by reason of such party having been the drafter of the Agreement.

18.6 PointClickCare maintains a Code of Business Conduct and Ethics (the “**Code**”) applicable to all officers, directors and employees (both permanent and contract) available at pointclickcare.ethicspoint.com. Marketplace Partner shall require its representatives to conduct business in a manner consistent with the Code or Marketplace Partner’s own similar standards and use reasonable efforts to notify PointClickCare if Marketplace Partner becomes aware of any conduct of business by its representatives inconsistent with same. Marketplace Partner confirms that it has not received or been offered any illegal or improper bribe, kickback, payment, gift, or thing of value from any of PointClickCare’s employees or agents in connection with this Agreement, except for any reasonable gifts and entertainment provided in the ordinary course of business. If Marketplace Partner learns of any violation of the above restriction, Marketplace Partner shall use reasonable efforts to promptly notify PointClickCare Partnership Manager or its Legal Department.

18.6 Survival. All sections of the Agreement, which by their nature should survive termination, will survive termination, including, without limitation, accrued rights to payment, use restrictions and indemnity obligations, confidentiality obligations, warranty disclaimers, and limitations of liability.

POINTCLICKCARE TECHNOLOGIES INC.

Signature: Amandeep Vaid
Amandeep Vaid (May 8, 2026 18:09:22 EDT)
 Print Name: Amandeep Vaid
 Print Title: VP, Contracts & Legal
 Date: May 8, 2026
 I have authority to bind this company.

MARKETPLACE PARTNER:

Shashi.ai, Inc.
(legal name of company)
 Signature: Dipesh Gupta
Dipesh Gupta (May 7, 2026 00:25:18 PDT)
 Print Name: Dipesh Gupta
 Print Title: CEO
 Date: May 7, 2026
 I have authority to bind this company.

APPENDIX A: Authorized Use Case(s) and Marketplace App Description**Authorized Use Case(s)**

Marketplace Partner acknowledges and accepts the following limited use case(s) authorized under this Agreement for the integration of a software application between the Marketplace Partner and PointClickCare:

PointClickCare Initials: AV

Marketplace Partner Initials: DG

Marketplace Partner API Integration Description

Marketplace Partner acknowledges and accepts the limited use case(s) authorized under this Agreement for the integration of a software application between the Marketplace Partner and PointClickCare will only be used for the Marketplace Partner API Integration product and/or service described in this section. Marketplace Partner to specify information, including but not limited to (i) Marketplace Partner API Integration product or service name, description, and intended use case by joint customers; (ii) Marketplace Partner API Integration product or service data requirements (including receipt and/or write-back of data requirements); and (iii) details of any third parties, subsidiaries, subcontractors, or agents that are retained by the Marketplace Partner who use, disclose, create, acquire, receive, maintain, or transmit data in connection with this Agreement.

PointClickCare Initials: AV

Marketplace Partner Initials: DG

APPENDIX B: Fees and Minimum Integration Commitment

Fees

Marketplace Partner shall pay PointClickCare the following Fee in accordance with the Payments terms for the integration of a software application between the Marketplace Partner and PointClickCare for each facility that has a live API integration with PointClickCare:

Minimum Integrations Commitment. After the Initial Term of this Agreement, Marketplace Partner hereby agrees to successfully integrate _____ Active Facilities for the Authorized Use Cases (the “Minimum Integrations Commitment”). Within sixty (60) days of each Renewal Term, the parties shall agree upon a Minimum Integration Commitment for such Renewal Term, provided, however, that unless the parties otherwise agree, the Minimum Integrations Commitment shall be the previous year’s Minimum Integrations Commitment for the Renewal Term.

PointClickCare Initials: AV

Marketplace Partner Initials: DG